

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: November 5, 2024

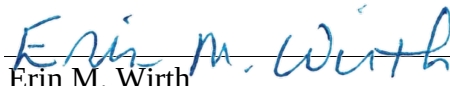
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER GRANTING RESPONDENTS' NOTICE OF LETTER OF REQUEST TO DEPOSE PACY CHOW

On October 16, 2024, Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited filed a Notice of Letter of Request to Depose Pacy Chow pursuant to the Hague Convention of 18 March 1970 on the Taking of Evidence Abroad in Civil or Commercial Matters. Under Commission Rule 142, depositions in a foreign country may be taken pursuant to such a letter of request, which may be granted on application of the party seeking the deposition without any showing that taking the deposition in another manner is impracticable. 46 C.F.R. 502.142. No opposition to the notice was received.

Respondents represent that Pacy Chow is an employee of non-party Yusen Logistics (Hong Kong) Limited, who was working on Yusen's behalf with Bed Beth and Beyond, Inc. during the time periods relevant to this matter. The topics for examination relate to the claims in issue in this case and appear appropriately limited in time and scope. The proposed Letter of Request appears proper and in compliance with the Hague Convention procedures in seeking the deposition of Ms. Chow. I therefore authorize Respondents to utilize the Hague Convention procedures in seeking the deposition of Ms. Chow and order Respondents to comply with all applicable laws of the Judiciary of the Hong Kong Special Administrative Region of the People's Republic of China in doing so.

The Letter of Request is attached and executed by the undersigned. Counsel for Respondents may file this Order and the Letter of Request, along with any other necessary documents or translations, with the appropriate authorities.


Erin M. Wirth
Chief Administrative Law Judge